CHARLES GWANDE
versus
GETBUCKS MICROFINANCE BANK LIMITED

HIGH COURT OF ZIMBABWE
COMMERCIAL DIVISION
MUSHURE J
HARARE; 23 February & 24 April 2026

Correction of judgment

M. Ncube for the applicant
C. F. Nyamundanda for the respondent

MUSHURE J:

INTRODUCTION

[1] This is an application for correction of a judgment made in terms of r29 (1) (b) of the High Court Rules, 2021, as read with r4(2) and r29 of the High Court (Commercial Division) Rules, 2020.

[2] The application is made pursuant to a default judgment issued against the applicant by MAFUSIRE J (as he then was) on 4 October 2024, ordering him to pay the respondent the sum of US$28 824.64 together with interest thereon at the rate of 10% per month, plus a penalty interest rate of 15% per annum, both calculated from 18 May 2024 to date of full and final payment. It was further declared that the applicant's immovable property is specially executable. The applicant was also ordered to pay collection commission and costs of suit on a punitive scale.

[3] I quote verbatim the draft order sought in this matter:

1. The application be and is hereby granted.
2. The judgment of this court against applicant issued on the 4th of October 2024 be and is hereby corrected as follows:
   i. Deletion from paragraph 1 of the order any reference to the sum of USD28 824.64 and reference to payment of 10% interest per month and USD15%

penalty interest per annum both calculated from 18th May 2024 to date of full and final payment and replacement of same thereof with the following:

a. Defendant shall pay the plaintiff the sum of US$28 000 with 10% interest per month, plus a penalty interest of 15% per annum, both calculated from the date of judgment to date of full judgment.

ii. Deletion of any reference in paragraph 1 of the order to payment of collection commission such that it shall read as follows:

a. Defendant shall plaintiff costs of suit on an attorney and client scale.

BACKGROUND FACTS

[4] The facts leading to this matter are largely common cause. There may be summarised as follows. On 2 December 2022, the applicant guaranteed a US$10 000 loan extended to one Method Ndlovu by the respondent. Method Ndlovu defaulted on his payments. Consequently, the respondent sued summons out of this court under HCHC350/24 claiming the outstanding balance, which by that time had ballooned to US$28 824.64. The applicant engaged legal counsel, Mr Hillay Gunje, to defend the summons on his behalf. Mr Gunje duly entered an appearance to defend but did not subsequently file any other pleadings in the matter, presumably due to the fact that he was chasing his own demons before the Legal Practitioners Disciplinary Tribunal. A default judgment against the applicant ensued.

[5] The applicant avers that he spends most of his time in South Africa, so he only became aware of the default judgment on 6 March 2025, following the service by the Sheriff of a letter advising that the respondent's legal practitioners had issued instructions to sell his property in execution of the default judgment.

[6] The applicant then liaised with Method Ndlovu, as the principal debtor, upon which he was advised that Method Ndlovu had paid into the respondent's attorney's trust account a total of US$28 825.

[7] Crisply put, the crux of the applicant's application is that the default judgment contains 'patent errors that need to be corrected', namely that it is wrong as it violates the *in duplum* rule. Initially, the applicant also contended that the order was incompetent at law because it ordered him to pay both the collection commission and costs of suit on a punitive scale. This ground was however abandoned in the applicant's heads of argument.

[8] The respondent opposes the application on two in limine points. Basically, the respondent argues, that the application has been filed out of time and that r29 (1) (b) of the Rules does not cater for the nature of corrections sought in this matter. I note that the respondent's second preliminary point also speaks to the merits of this application.

[9] At the hearing of the matter, Mr *Ncube*, appearing for the applicant, submitted that the view he took was that r29 (1) (b) is available where the issue goes to the interpretation of the law. I asked him if r29 (1) (b) is available in instances, as the current one, where the applicant was essentially asking the court to correct an error relating to its interpretation of the law, and if that was not in the province of an appeal court. Mr *Ncube* submitted that their view could be wrong, but he stood by the papers before the court.

[10] *Per contra*, Mr *Nyamundanda* for the respondent, persisted that r29 (1) (b) was not available to the applicant. He submitted that there was no error because the order that was issued was in terms of the summons that was issued. He submitted, further, that it would have been different if the order provided for something different from the relief that had been sought. The intention of the court could not be put into question because what the judge ordered is what was pleaded. The respondent regurgitated the same points he had raised in the pleadings regarding the preliminary point that the application was filed out of time.

ISSUES FOR DETERMINATION

[11] Two issues fall for determination, namely whether or not the application was filed out of time and whether r29 (1) (b) of the High Court Rules envisages the correction sought by the applicant. I turn to deal with these issues *ad seriatim*.

WHETHER OR NOT THE APPLICATION WAS FILED OUT OF TIME

[12] The legal requirement in r29 (2) of the High Court Rules, as read with r4(2) of the High Court (Commercial Division) Rules, is that an application made under r29 (2) must be made within one month after becoming aware of the existence of the order or judgment. The respondent contends that the application was filed out of time because judgment was entered in default on 4 October 2024, and on 13 November 2024, the applicant's

immovable property was placed under judicial attachment, so the applicant became aware of the judgment at that time. The respondent further contends that it fell upon the applicant to follow up on his matter, so it was illogical for him to feign ignorance of how his case progressed. Furthermore, the principal debtor is not a layperson but a senior Advocate of the Superior Courts of Zimbabwe who has always been aware of the existence of this order, so he must have communicated this to the applicant.

[13] In my view, this preliminary point is based on conjecture, suppositions, and speculation that the applicant must have become aware of the default judgment earlier than he submits. From the documents filed of record, it is clear that when the notice of attachment of the immovable property was served, it was served by affixing it on the veranda at the address for service, after the Sheriff had knocked several times without response. There is no evidence that Method Ndlovu was communicating with the applicant, and there is no valid basis to conclude that simply because they are co-principal debtors, they must have been communicating. The argument that he should have followed up on his matter does not, in my view, change the position that he was not diligent enough to do so and only became aware of the judgment on 6 March 2025. The fact that the respondent's legal practitioners were talking to the applicant's spouse does not advance its argument. Nothing precluded them from getting a supporting affidavit to prove their assumption that the applicant's spouse would relay information relating to the execution of the immovable property to the applicant, who has placed evidence before the court to show that he was not within Zimbabwe.

[14] I must say that this point in *limine* fits squarely into the kind of points *in limine* commented by MATHONSI J (as he then was) in *Telecel Zim (Pvt) Ltd* v *POTRAZ & Ors* 2015 (1) ZLR 651 (H) at p659D that: -

> "Legal practitioners should be reminded that it is an exercise in futility to raise points *in limine* simply as a matter of fashion. A preliminary point should only be taken where firstly it is meritable and secondly it is likely to dispose of the matter.."

[15] The preliminary point should not have been taken at all. It is without merit and has been taken as a matter of routine. It is accordingly dismissed.

WHETHER RULE 29 (1) (b) OF THE HIGH COURT RULES ENVISAGES THE CORRECTION SOUGHT BY THE APPLICANT

[16] Rule 29 (1) (b) of the High Court Rules provides that:

> "(1) The court or a judge may, in addition to any other powers it or he or she may have, on its own initiative or upon the application of any affected party, correct, rescind, or vary—
> (*a*) ……; or
> (*b*) an order or judgment in which there is an ambiguity or a patent error or omission, but only to the extent of such ambiguity, error or omission;…."

[17] The position of the law as stated by MAKARAU J (as she then was) in *Tiriboyi* v *Jani & Anor* 2004 (1) ZLR 470 (H) at p472D is that the purpose of r29 is to enable the court to revisit its orders and judgments in order to correct or set aside its orders or judgments given in error, in situations where to allow such orders or judgments to stand on the excuse that the court has become *functus officio* would result in an injustice and would destroy the very basis upon which the justice system rests. Rule 29 is an exception to the general rule, and it must be resorted to only for the purposes of correcting an injustice that cannot be corrected in any other way.

[18] There is ample precedent on the principles which inform the court whether or not an applicant is entitled to relief in terms of r29 (1) (b). In *Unitrack (Private) Limited* v *TelOne (Private) Limited* SC10-18 at pp6-7, the court, speaking to r449 of the High Court Rules, 1971, which has now been repealed and substituted with r29 of the current rules, remarked that:

> In *City of Mutare v Mawoyo* 1995 (1) ZLR 258 (HC) at 266E–267C, it was said:
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> > "In *Parker v Parker & Ors supra* SCOTT J was asked to alter an order by SANDURA JP directing that an exception in case HC 3196/84 and an application in case HC 1108/85, both cases involving the same parties, be heard together on the same occasion. Declining jurisdiction, SCOTT J said at 85B:
> >
> > > 'The whole thrust of the reasons advanced by Mr *O'Meara* seems to point to an assertion that in his view the order was wrongly made. As a judge of the High Court, it is not up to me to vary or alter an order of a judge of parallel jurisdiction, short of expanding on it.'
> >
> > Mr *Wernberg*'s argument was that the court has inherent powers to vary its orders. No authority was cited for this general proposition. Rule 449 (1) of the Rules of the High Court of Zimbabwe 1971 does not cover variations of the orders in the manner suggested by the applicant in this case. The order by BARTLETT J was not erroneously applied for or erroneously granted. The variation applied for does not involve the correction of an error or omission in the order so that it accurately expresses the intention of the court.

> *I am being asked to delete ss 1 and 2 of the original order and substitute in their places the declarations requested by the applicant, without it being said what is to happen to the default judgment on which the order sought to be mutilated now stands. Although called an amendment, what is being applied for is to all intents and purposes a complete substitution of the terms and content of one order with those of another order.*
> Can one set aside an order and substitute in its place a completely different matter without doing violence to the sense and substance of the judgment or the intention of the court that granted the order? The sense and substance of the original order will be changed…." [Emphasis added].

[19] The issue that confronted the court in *City of Mutare* v *Mawoyo supra* is the same issue confronting the court now. The applicant is asking this court to 'correct' the order by MAFUSIRE J (as he then was) on the basis that the order violated the *in duplum* rule. The question confronting me is whether I am empowered to do so in terms of r29 (1) (b) of the High Court Rules.

[20] The extent of the powers of a court seized with a r29 (1) (b) application is settled. In *Bonde* v *National Foods Limited & Ors* SC20-26 at pp7-9, CHITAKUNYE JA made the following pertinent remarks:

> "A reading of the above rule reveals that it confers a limited and strictly confined power to the court in relation to the correction or variation of its own judgments. It can be deduced from the wording of the rule that the provision is not intended to facilitate the indirect reopening of matters already decided, or to permit a dissatisfied litigant to secure a reconsideration of the merits through the back door. The rule exists solely to allow a court to reconcile ambiguities in its judgment or to correct errors apparent on the face of the order or the judgment itself that may be rectified without the need to revisit evidence, arguments, or the court's substantive findings. Hence the correction is only to the extent of such ambiguity, error or omission.
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> In *Jongwe & Anor* v *National Foods Ltd* SC 91/25, at pp 11-12, UCHENA JA aptly clarified what constitutes a patent error in these words:
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> "[35] What constitutes a patent error for purposes of r 29 (1) (b) must be a mistake by the court, in pronouncing its intended judgment or order. This was clarified by DUBE J (as she then was) in *Hopcik Investments (Pvt) Ltd* v *Minister of Environment, Water and Climate and City of Harare* HH 336/16 at pp 4 to 5 of the judgment as follows:
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> 'Coming to the nature of the error made, Herbstein and Van Winsen in *The Civil Practice of the High Courts of South Africa*, 5th ed at p 934, describe a 'patent error or omission' as:
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> 'An error or omission as a result of which the judgment or order granted does not reflect the intention of the judicial officer pronouncing it.'
>
> The authors state that the patent error or omission must be attributable to the court itself and that relief will only be accorded where the terms of the judgment or order do not reflect the true intention of the presiding judge. In the *Firestone* case, TROLLIP J held at p 304 DH, that in a case involving correction of an order in terms of r 42 of the Uniform Court Rules of South Africa which is identical to our own r 449, that the court has the power to clarify its own judgments or

> orders so as to give effect to their true meaning and true intention of the court for as long as it does not alter the 'sense and substance' of the judgment or order.
> …
>
> The court should endeavour to do so without altering the 'sense or substance' of the judgment or order and must ensure that it does not admit a different interpretation to the judgment or order. Consequently, this exception is limited only to the correction of the order. The r 449 (1) (b) (2) caters for mistakes attributable to the court. The correctness of the order or judgment originally issued is not an issue but rather whether the court made a patent error or omission and in addition whether the order granted reflects the true intention of the court. The court may not substitute its judgment or order for another one completely different. The rule is meant merely to facilitate clarification of orders or judgments.'" (Underlining for emphasis)

The authorities cited above reiterate the confines of the power granted to a court to correct its own judgment. They emphasise that a patent error is an inconsistency between what the court intended and what was actually pronounced."

[21] From a reading of the applicant's pleadings, he is dissatisfied with certain portions of the default order that was issued against him. In his heads of argument, he states that

> "The net effect of all this is that interest could not lawfully accrue and could not lawfully be awarded by the court after it reached an amount equal the capital sum except from the date of judgment onwards. Accordingly, the interest awarded by this Honourable Court from 8th of May 2024 to the date of judgment on 4 October 2024 is unlawful and could only have been granted in error…"

[22] The applicant then cites a plethora of authorities on the *in duplum* rule, after which he states that

> "Accordingly, the award of interest from 8 May 2024 being prohibited by the law was clearly an error as the court cannot order that which is unlawful. Thus the judgment of the Honourable Court needs to be corrected to reflect that interest runs from the date of judgment and that therefore interest could not have been lawfully made to run from 18th May 2024."

[23] What the applicant is asking this court to do is to revisit the order by MAFUSIRE J (as he then was) because it offends the *in duplum* rule. He is essentially seeking an indirect reopening of the matter, under the guise of correcting what he calls a patent error. The applicant has not pointed out to me any ambiguities in the default judgment, or any error apparent from the order that needs to be rectified without the need to revisit the evidence, arguments, or the court's substantive findings. Neither has the applicant pointed out any error made by the judge in pronouncing his intended order. There is no proof that the order does not reflect the intention of the judge who pronounced it. Instead, the applicant wants the court, sitting as a court of parallel jurisdiction, to review the default judgment and substitute it with another order, effectively altering the sense and substance of the original

order. The applicant is not seeking a correction of the original order; he is asking this court to revisit the merits of the matter. Measured against the established legal principles, the application is devoid of merit and ought to be dismissed.

[24] The second preliminary point has merit and is dispositive of this matter.

[25] On the question of costs, it has been submitted that in terms of the surety bond and guarantee signed by the applicant, the parties agreed that the respondent is entitled to claim costs on a higher scale for 'any further proceedings that may become necessary as a result of default of payment'. I have not been able to locate such a provision in both the guarantee and the Surety Mortgage Bond. I am of the view that in the absence of such an agreement between the parties, there is no justification in this matter for costs on a punitive scale. Costs on an ordinary scale would still meet the justice of this case.

ORDER

[26] In the result, the following order is made:

1. The first preliminary point be and is hereby dismissed.
2. The second preliminary point be and is hereby upheld.
3. The application be and is hereby dismissed with costs..

MUSHURE J:……..

Ncube Attorneys, applicant's legal practitioners
Nyamundanda & Mutimudye Attorneys respondent's legal practitioners